SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 13
Honorable Daniel T. Nishigaya
R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: June 23, 2026 TIME: 9:00 A.M.

TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856 BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING. You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

IN-PERSON APPEARANCES: Department 13 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court **strongly** encourages **in-person** appearances for any **contested** law-and-motion matter.

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 13 uses **UDC** as its remote platform. Please click on this link if you need to appear remotely, and then scroll down to click the link for Department 13:

https://santaclara.courts.ca.gov/online-services/remote-hearings

The Court **strongly** encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED.** Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) CourtCall is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process can be found here:

https://www.scscourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Go to https://reservations.scscourt.org or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	25CV463274	ENRIQUE SIGALA et al vs ALONSO ESTRADA et al	Hearing: Writ of Possession Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 2	25CV463849	Eastridge Property Holdings LLC vs Samir Maharjan et al	Hearing: Writ of Attachment Ctrl Click (or scroll down) on Line 2 for tentative ruling.
LINE 3	26CV489690	AUSTIN BUSINESS FINANCE, LLC vs J M SUPERMARKETS, INC. et al	Hearing: Order to Show Cause Ctrl Click (or scroll down) on Line 3 for tentative ruling.
LINE 4	19CV360733	Kellar et al vs Central Investments et al	Status Conference Parties to appear to discuss status and future scheduling.
LINE 5	22CV398906	Marzieh Abdolyousefi et al vs Mojtaba Taiebat et al	Motion to Withdraw as Attorney The Court's tentative ruling was indicated in its order of 6/17/2026. Counsel Tsivyan and Defendant Taibat shall appear in person (physically present) in Department 13 for argument on the motion to withdraw and to allow for *in camera* proceedings on the motion as may be necessary.

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LINE #	CASE #	CASE TITLE	RULING
LINE 6	17CV314877	Econergy, Inc. v. Jaspal Singh Deol	Order to Show Cause Parties to appear.
SPECIAL SET LINE1	25PR199104	Living Trust of Gilbert and Cecilia Marosi dated 3/03/1983, as amended	Hearing: Petition Advance Case Status Report: No notice of hearing or proof service of notice of hearing was filed with the petition, which was originally set for 6/3/26 in D7. (Prob. Code § 17203.) The 6/3/26 hearing was vacated and reset to 6/23/26 in D13. On 5/8/2026, the Court sent notice of the rescheduling and reassignment of the hearing to Petitioner directly and counsel for Richard Marosi. However, this is not § 17203 notice.

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Calendar Line 1

Case Name: *Enrique Sigala et al v. Alonso Lujano Estrada et al.*
Case No.: 25CV463274

Before the Court is Plaintiff Enrique Sigala ("Plaintiff Sigala") and Durango Paving and Grading Inc. ("Corporate Plaintiff"), prejudgment application for writ of possession for delivery of a breaker attachment, believed to be in the possession of Defendant Alonso Lujano Estrada ("Defendant Estrada"), Cal-State Paving Inc., and Lujano Builders Inc. ("Corporate Defendants"). The Court GRANTS Plaintiff Sigala's application for writ of possession for the following reasons.

Pursuant to California Code of Civil Procedure section 512.010, Plaintiff Sigala provided the following information along with his application (in order as it appears in the statute):

(1) A written document of Corporate Plaintiff's agreement with Wells Fargo for the financing of the Bobcat T770 and Breaker NB170 and a statement that the Breaker is Corporate Plaintiff's property as it was paid in full by Plaintiff Sigala acting as a representative for corporate use. (Sigala Decl. ¶ 12, Ex 6.)

(2) A statement by Plaintiff Sigala alleging that despite multiple demands for the return of the Breaker, Defendant Estrada refuses to return the Breaker and is still in possession. (Sigala Decl. ¶13.)

(3) A statement by Plaintiff Sigala of the approximate values and serial numbers of the Bobcat and Breaker attachment. (Sigala Decl. ¶ 10, 12.)

(4) Plaintiff Sigala's statement that the last known use of the Breaker by Corporate Plaintiff, Plaintiff Sigala, and witness Lorena, was in or around September 2023, at a job site in Corte Madera. After that, Plaintiff alleges that Defendants Estrada and Steve took the Breaker to Corporate Defendant's address and to the best of his knowledge the property remains there. (Sigala Decl. ¶ 11, Ex 4.)

(5) A statement by Plaintiff Sigala, that to his knowledge, the property has not been seized for tax assessment or fine purposes. (Sigala Decl. ¶ 14-15.)

Defendant Estrada opposes Plaintiff Sigala's application for prejudgment writ of possession, stating that Plaintiff Sigala failed to satisfy his burden to prove the *probable validity* of his claim to possession of the Breaker. The main dispute is over "a showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed." (Code Civ. Proc., § 512.010.) Probable validity is defined by California Civil Procedure Section 511.090, requiring the court to make a determination of the probable outcome of the case based on a claim "where it is more likely than not that the plaintiff will obtain a judgement against the defendant on that claim." (Code Civ. Proc., § 511.090) In *Santa Clara Valley Water Dist. v. Eisenberg* (2025) 117 Cal.App.5th 714, the court took into consideration the materials that accompanied the plaintiff's writ of possession application: a declaration by a senior management analyst in the plaintiff's security office, that had video footage of the defendant carrying out the printed reports (which was the property of interest), as well as a showing by plaintiff of their rightful possession over those documents (plaintiff emailed board members, specifically stating that those reports may be viewed but not taken and that the plaintiff was entitled to possess those reports, since the reports were created by its own attorneys), and lastly the defendant admitting that she had taken the reports home with her. With all the evidence tipping in favor of the plaintiff, making it "more likely than not" that the court would rule for the plaintiff's claim to the property, the *Eisenberg* court in fact granted the plaintiff's writ application after the hearing. (*Eisenberg, supra,* 117 Cal.App.5th at p. 724.)

Here, several facts weigh in favor the probable validity of Plaintiff Sigala's claim. Plaintiff Sigala has provided documentation of a bank loan for the financing of the Bobcat and Breaker attachment, and the loan borrower is listed as Corporate Plaintiff. (Sigala Decl. Ex. 6.) This documentation shows Corporate Plaintiff as the likely purchaser of the Breaker. Defendant Estrada asserts that Plaintiff Sigala failed to provide a bill of sale and other such related documents proving the sale. He also rejects the loan documents provided by Plaintiff Sigala as evidence showing that the loan was funded. (Opp. at 8:2-8.) While no invoices for the transaction were provided, declarations from both parties confirm delivery of the Breaker to a job site, indicating its purchase. (Sigala Decl. ¶ 10; Estrada Decl. ¶ 22.) Despite Defendant Estrada's disagreement, as mentioned above, both parties confirmed the delivery of the Breaker attachment. Additionally, if Defendant Estrada is implying rightful ownership of the Breaker, it is strange that he did not provide any documentation indicating such ownership. Since both parties accept that the Breaker was purchased by Corporate Plaintiff for its use, it is likely entitled to ownership rights. Another statutory element is a showing that the property is wrongfully detained by the other party. Plaintiff Sigala alleges that Defendant Estrada is in wrongful possession of the Breaker and refuses its return, despite multiple requests. Notably, Defendant Estrada fails to disclose the current location or possession of the Breaker and omits any mention of their refusal to return it. This conduct further supports Plaintiff Sigala's rightful possession. Moreover, Plaintiff Sigala has sufficiently met the rest of the statutory requirements, none of which is in dispute.

Because Plaintiff Sigala provided the necessary statutory requirements and satisfied his burden of proving probable validity of Corporate Plaintiff's claim to possession, the Court GRANTS plaintiff's application for prejudgment writ of possession.

For the foregoing reasons, Plaintiff's Applications for Right to Possession Order is GRANTED, conditioned on Plaintiff filing undertakings of $13,835.26 (Code Civ. Proc., § 515.010.)[1]

The Court will prepare an order after hearing and will sign the Form CD-120 that was submitted on November 7, 2025.

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[1] The parties have provided very little specific guidance for the Court regarding the proper amount of any undertaking. As the undertaking shall be not less that twice the value of Defendants' interest and the Court can see no potential for an interest greater than 50%, the Court has set the amount of the undertaking at the value of the Breaker.

Calendar Line 2

Case Name: *Eastridge Property Holdings, LLC v. Classic Diamond & Jewelry, LLC, et. al*
Case No: 25CV463849

Plaintiff Eastridge Property Holdings, LLC ("Plaintiff") seeks Right to Attach Orders and a Writ of Attachment in the amount of $265,594.53. Defendants oppose.

"An attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract . . . where the total amount . . . is a fixed or readily ascertainable amount not less than five hundred dollars ($500)." (Code Civ. Proc. § 483.010.) The court shall issue a right to attach order if it finds: (1) the attachment is based on a claim which an attachment may be issued; (2) the plaintiff has established probable validity of that claim; (3) the attachment is for the purpose of recovery on that claim; and (4) the amount to be secured is greater than zero. (§ 484.090.) A claim has probably validity if it is more likely than not that the plaintiff will prevail. (§ 481.190.) Defendants have not challenged the probable validity of Plaintiff's claim in the context of this application.

Defendants do argue that the Application should be denied because the rent liability is secured, and thus exempt, under Code of Civil Procedure section 483.010, subdivision (b). But as Plaintiff notes in its reply, this subdivision states, "[a]n attachment may not be issued on a claim which is secured by an interest in *real property* arising from agreement." (*Id.* [emphasis added].) The Landlord's Lien in the lease agreement provides that the rent is secured by "all Tenant's property now or hereafter situated in the Premises." This provision does not refer to any real property of Defendants'; thus, the claim is not secured by *real property*.

Defendants' next argument is that Plaintiff's claim is not "fixed or readily ascertainable" under section 483.010. "It is well recognized rule of law in this state" that an attachment may be issued "where the damages are readily ascertainable by reference to the contract and the basis of the computation of damages appears to be reasonable and definite." (*Lewis v. Steifel* (1950) 98 Cal.App.2d 648, 650 [internal quotations omitted].) An attachment should not be issued "merely because the amount is uncertain consisting of damages to be proven at trial." (*Id.* [internal quotations omitted].) Here, the damages are readily ascertainable by reference to the contract. The basis of Plaintiff's computation also appears to be reasonable and definite.

For the foregoing reasons, Plaintiff's Applications for Right to Attach Orders in the amount of $265,594.53 are GRANTED, conditioned on Plaintiff filing undertakings of $10,000 per defendant ($30,000 total). Plaintiff may attach any corporate property of CLASSIC DIAMOND & JEWELRY, LLC and any real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit boxes, accounts receivable, general intangibles, property subject to pending action, final money judgments, and personal property in estates of decedents of SAMIR MAHARJAN and SURYA MAHARJAN.

Defendants wish to claim a 2002 Lexus LS430 as exempt from attachment. Defendants' claim for exemption is DENIED due to a lack of sufficient admissible evidence. Defendant Samir Marhajan's assertion of the "retail" value of the vehicle and attachment of a hearsay document apparently printed from an internet site fails to meet the showing contemplated by Code of Civil Procedure § 704.010(c).

As for Defendants' claim that no other attachable assets exist in California, this is not grounds for denial and Plaintiff is entitled to explore the claim in discovery.

The Court will prepare an order after hearing, however, Plaintiff shall prepare and submit the final attachment orders, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.

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Calendar Line 3

Case Name: *Austin Business Finance, LLC v. J M Supermarkets, INC., et al.*
Case No: 26CV489690

Plaintiff and Judgment Creditor, Austin Business Finance, LLC ("Austin"), submitted an application for an order for sale of the interest in real property. Having received a judgment against J M Supermarkets, Inc. ("J M") and Maria Ochoa Barajas ("Barajas"), Austin seeks a court order for the sale of Barajas' undivided one-half interest in 7950 Arroyo Circle, Gilroy, California ("the Property"). Gilroy Ventures, LLC ("Gilroy") has intervened seeking a judgment quieting title to the Property establishing: (1) that it owns a 100% fee simple interest; (2) that the Property is free and clear of any claim by Austin; and (3) that Austin has no interest, title lien, or right in the Property. (Steinberg Decl. ISO Ex Parte, Ex. 2.)

Gilroy's and Austin's briefs have presented a genuine issue as to who owns what interest in the Property. These issues require further litigation. Thus, Gilroy has shown cause as to why the property should not be sold. Accordingly, Austin's Application for Order to sell Maria Ochoa Barajas' interest in 8950 Arroyo Circle, Gilroy, California is DENIED.

The matter shall be set for a Case Management Conference on July 29, 2026 at 10:00 a.m. in Department 11.

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